

# 100 BEAL STREET SENIOR AFFORDABLE HOUSING

Executive 1-Page Master Briefing: 37-Year Timeline, Current Posture & Project Architecture

SEPTEMBER 2026 STATUS

Town of Hingham, MA • HHA & Peabody

## 1. WHERE WE ARE TODAY: CURRENT STATUS SNAPSHOT

Governed by M.G.L. c. 121B & Plymouth Registry Records

|                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                        |
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| <b>FEE SIMPLE OWNERSHIP</b><br><b>HHA Owns Lot B</b><br>HHA holds unencumbered fee simple title to 8.6-acre Lot B (Bk 9516, Pg 291). Encumbered by recorded Mass EOHLC c. 121B § 34 restriction (Bk 51379, Pg 244) legally barring any general municipal diversion. | <b>DEVELOPER PARTNER</b><br><b>Peabody Properties</b><br>Designated developer under a 99-year ground lease and Land Disposition & Development Agreement (LDDA). Includes \$500,000 upfront lease payment to HHA; public permanently retains land ownership. | <b>FISCAL / TAX IMPACT</b><br><b>\$0 Town Tax Dollars</b><br>\$0 municipal debt, \$0 town borrowing, and \$0 capital outlay. 100% privately financed via Low-Income Housing Tax Credits (LIHTC), state subsidies, and private capital. Generates net revenue for HHA. | <b>PERMITTING TRACK</b><br><b>MassHousing &amp; Ch. 40B</b><br>Active MassHousing Project Eligibility Letter (PEL) submission, followed by Chapter 40B Comprehensive Permit filing with Hingham ZBA. Environmental lines secured via finalized MassDEP ORAD #034-1509. |
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## 2. 37-YEAR CHRONOLOGICAL TIMELINE: 1989 TO 2026

Primary-Source Municipal & Registry Chronology

| DATE         | DECISIVE EVENT                      | GOVERNING SOURCE & CITATION                      | LEGAL & PRACTICAL SIGNIFICANCE                                                                   |
|--------------|-------------------------------------|--------------------------------------------------|--------------------------------------------------------------------------------------------------|
| Dec 1989     | <b>Town Conveys Lot B to HHA</b>    | <i>Town Deed (Bk 9516, Pg 291)</i>               | Conveys School Tract II (8.6 acres) to HHA with a 30-year youth home restriction.                |
| Feb 2001     | <b>Remediation &amp; 2001 MOU</b>   | <i>Selectmen &amp; HHA MOU; Plan 155 of 2001</i> | Underground ammo bunker removed; ANR subdivides Lot A (Town DPW) and Lot B (HHA).                |
| Apr–May 2006 | <b>Town 2/3 Senior Housing Vote</b> | <i>2006 ATM Art. 22; Selectmen Vote</i>          | Town Meeting authorizes senior housing; Selectmen vote deed release (remained unrecorded).       |
| Feb 12, 2019 | <b>Select Board Litigation Vote</b> | <i>Select Board Exec. Session (3–0 Vote)</i>     | Town votes to authorize lawsuit against HHA to enforce 2001 MOU municipal co-determination.      |
| Mar 19, 2019 | <b>30-Year Reverter Expires</b>     | <i>M.G.L. c. 184A, § 7 (Statutory Limit)</i>     | 1989 deed reverter and youth home restriction expire automatically by operation of state law.    |
| Jul 19, 2019 | <b>State Statutory Restriction</b>  | <i>DHCD Recorded Notice (Bk 51379, Pg 244)</i>   | State registers c. 121B § 34 restriction; locks parcel for state-regulated housing exclusively.  |
| Sep 21, 2021 | <b>HHA Board Rescinds 2001 MOU</b>  | <i>HHA Board Resolution (4–0 Vote)</i>           | Rescinded after DHCD legal opinion confirms MOU unlawfully divested Housing Authority authority. |
| Dec 16, 2024 | <b>MassDEP ORAD Approved</b>        | <i>ConCom Order (MassDEP #034-1509)</i>          | 5–0 vote establishes binding wetland line; confirms Depression D is non-jurisdictional upland.   |
| Aug 19, 2025 | <b>Peabody Properties Selected</b>  | <i>HHA Board Designation &amp; LDDA</i>          | Selected via public RFP for 68 senior units; 99-year lease provides \$500k upfront fee to HHA.   |
| Apr–Sep 2026 | <b>CAL Defeated; 40B PEL Active</b> | <i>2026 ATM Art. 14; MassHousing PEL</i>         | Town CAL senior center defeated on Town Lot A; HHA independent senior housing advances on Lot B. |

## 3. PROJECT ARCHITECTURE: CORE COMPONENTS BREAKDOWN

6-Pillar Operational & Technical Matrix

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| <b>1 Site &amp; Land Layout</b> <ul style="list-style-type: none"><li><b>Parcel:</b> 8.6-acre Lot B at 100 Beal Street.</li><li><b>Upland Plateau:</b> Building strictly sited on ~3.5-acre level, previously disturbed upland area.</li><li><b>Conservation Buffer:</b> 100% of construction sits outside the 100-ft wetland buffer.</li><li><b>Flood Zone:</b> 0 acres within 100-year FEMA flood plain.</li></ul> | <b>2 Building Program</b> <ul style="list-style-type: none"><li><b>Scale:</b> 3-story residential facility; 68 units.</li><li><b>Demographic:</b> Independent seniors (Ages 62+).</li><li><b>Accessibility:</b> 100% elevator-served, ADA/universal design, wide corridors, zero-step entries.</li><li><b>Amenities:</b> Community hall, wellness exam room, library, on-site management, patio/gardens.</li></ul> | <b>3 Affordability &amp; Mix</b> <ul style="list-style-type: none"><li><b>100% Affordable:</b> All 68 units count toward Hingham's Subsidized Housing Inventory (SHI).</li><li><b>Income Tiers:</b> Restricted from 30% to 80% AMI to serve low- and moderate-income seniors.</li><li><b>Local Preference:</b> Maximum ~70% statutory preference for Hingham residents, veterans, town staff.</li></ul>              |
| <b>4 Financing &amp; Fiscal Impact</b> <ul style="list-style-type: none"><li><b>\$0 Municipal Debt:</b> Zero town borrowing or capital appropriations; zero municipal tax impact.</li><li><b>Private Capital:</b> Peabody funds 100% via LIHTC equity, EOHLC subsidies, and private debt.</li><li><b>HHA Revenue:</b> Generates \$500,000 upfront lease payment to HHA to support local public housing.</li></ul>    | <b>5 Governance &amp; Legal Title</b> <ul style="list-style-type: none"><li><b>99-Year Ground Lease:</b> HHA retains permanent public fee ownership of the underlying land.</li><li><b>State Oversight:</b> M.G.L. c. 121B and EOHLC ensure housing covenant perpetuity.</li><li><b>Title Resolution:</b> Ministerial recording of 2006 Selectmen vote clears unrecorded title cloud.</li></ul>                    | <b>6 Watershed Protection</b> <ul style="list-style-type: none"><li><b>Tucker's Swamp:</b> Zero construction or direct runoff into peat bog or Hockley Run headwaters.</li><li><b>Depression D:</b> Confirmed non-jurisdictional isolated depression under MassDEP ORAD #034-1509.</li><li><b>Stormwater:</b> Modern closed-loop subsurface recharge system cleans and infiltrates 100% of on-site runoff.</li></ul> |

**Key Takeaway:** 100 Beal Street Lot B is an independent, state-regulated 68-unit senior affordable housing initiative on Housing Authority land. It requires **\$0 in Town tax dollars**, preserves natural buffers to Bare Cove Park, and provides critical, accessible homes for Hingham elders with **~70% local preference**.